

Opinion of the Court

American states,” Lutz, *Evolution of the Claims of U. S. Patents*, 20 J. Pat. Off. Soc. 134 (1938), and we have accordingly found no direct antecedent of modern claim construction in the historical sources. Claim practice did not achieve statutory recognition until the passage of the Act of July 4, 1836, ch. 357, § 6, 5 Stat. 119, and inclusion of a claim did not become a statutory requirement until 1870, Act of July 8, 1870, ch. 230, § 26, 16 Stat. 201; see 1 A. Deller, *Patent Claims* § 4, p. 9 (2d ed. 1971). Although, as one historian has observed, as early as 1850 “judges were . . . beginning to express more frequently the idea that in seeking to ascertain the invention ‘claimed’ in a patent the inquiry should be limited to interpreting the summary, or ‘claim,’” Lutz, *supra*, at 145, “[t]he idea that the claim is just as important if not more important than the description and drawings did not develop until the Act of 1870 or thereabouts.” Deller, *supra*, § 4, at 9.

At the time relevant for Seventh Amendment analogies, in contrast, it was the specification, itself a relatively new development, H. Dutton, *The Patent System and Inventive Activity During the Industrial Revolution, 1750–1852*, pp. 75–76 (1984), that represented the key to the patent. Thus, patent litigation in that early period was typified by so-called novelty actions, testing whether “any essential part of [the patent had been] disclosed to the public before,” *Huddart v. Grimshaw*, Dav. Pat. Cas. 265, 298 (K. B. 1803), and “enablement” cases, in which juries were asked to determine whether the specification described the invention well enough to allow members of the appropriate trade to reproduce it, see, e. g., *Arkwright v. Nightingale*, Dav. Pat. Cas. 37, 60 (C. P. 1785).

The closest 18th-century analogue of modern claim construction seems, then, to have been the construction of specifications, and as to that function the mere smattering